SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 91

22STUD06657 January 20, 2026
FOX NORMANDIE APARTMENTS, LP vs DERRICK L. BEVERLY 8:30 AM

Judge: Honorable Mike H. Madokoro
Judicial Assistant: B. Colocho
Courtroom Assistant: None

CSR: None
ERM: Proceedings Electronically Recorded
Deputy Sheriff: A. Alvarez

APPEARANCES:

For Plaintiff(s): Tracey Merrell for Ada R Cordero-Sacks via LACourtConnect

For Defendant(s): No Appearances

NATURE OF PROCEEDINGS: Order to Show Cause Re: Sanctions Against Defendant

The matter is called for hearing.

By 9:05 AM, the Court confirmed with the Judicial Assistant that no appearances, either remote or in-person had been made by or for Defendant.

The Court and counsel for Plaintiff confer regarding the Order to Show Cause on calendar.

Counsel for Plaintiff is given the opportunity to argue.

Based upon a review of the papers submitted in support of and in opposition to the Order to Show Cause re Sanctions against Derick Beverly, and after hearing argument by Plaintiff, the Court orders as follows:

The Court orders sanctions against Defendant Derick Beverly in the sum of $2185.54 payable to Plaintiff Fox Normandie Apartment, LP by within thirty (30) days of Plaintiff giving notice of the court's ruling.

This Order to Show Cause re Sanctions is made pursuant to California Code of Civil Procedure (CCP) §128.7(b) and California Rules of Court (CRC) §§2.30 and 3.1204, for violations of local court rules. Plaintiff was invited to submit moving papers and Defendant was invited to file an opposition.

Plaintiff filed its unlawful detainer on October 13, 2022. A Default Judgment was entered against Defendant on November 29, 2022, and a Writ of Possession was issued on December 2, 2022. A lockout occurred January 26, 2023. The Defendant was locked out of the property and possession is no longer at issue.

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Defendant filed his first Appeal on September 11, 2023, close to a year after judgment was entered in this case. This appeal was dismissed for failure to file an Opening Brief after being placed in Default on January 24, 2024. Defendant filed a second appeal on June 10, 2024, ultimately dismissed for failure to procure the record and failure to cure the default on September 23, 2024. Defendant filed a 3rd appeal on November 25, 2024, appealing the same judgment rendered on November 29, 2022. According to Plaintiff, Defendant also filed five (5) separate affirmative lawsuits against the Plaintiff seeking redress from the UD lockout and the disposition of his personal property after the lockout. Defendant also filed a Civil Harassment Restraining Order, Case Number, 23STRO00528 on January 26, 2023, the day of the Sheriff lock-out but it was dismissed for failure to prosecute (tenant did not show up). Since then, Defendant has filed or noticed fifteen (15) different Ex Partes even after admonishment from the court that future defective motions may result in an OSC re Sanctions. The dates for the previous motions are as follows: September 29, 2025, October 9, 2025, October 13, 2025, October 15, 2025, Noticed for October 16, 2025, but not filed, October 17, 2025* Court Notes that future XPs deficient may result in OSC, October 21, 2025, November 4, 2025, November 13, 2025, December 1, 2025, December 3, 2025, December 11, 2025, December 12, 2025, December 19, 2025, and December 22, 2025. (See, Defendant's Memorandum of Points and Authorities, p. 3/ ll. 2-22; and Aff./Decl. of Tracey Merrell, paras. 13-17, and Exhs.)

Defendant was advised that his multiple motions lacked sufficient declaration of service, lacked a meaningful request for relief, and lacked evidentiary basis for any relief sought. The Court's Minute Orders also reminded Defendant that he failed to comply with CRC 3.1204 or the local rules in the Court's 5th Amended Standing Order dated June 1, 2021.

Further, the Plaintiff in its Opposition filed on October 17, 2025, laid out the argument that there is no legal basis the Defendant could bring before the Court in this particular case that would grant him any relief he requested. The judgment cannot be set aside since it was entered more than 6 months ago and the appellate process has more than been extinguished through 3 appeals. Therefore, Defendant, although in pro per, was on notice that his motion lacked any sufficient merit.

Defendant filed and served an untimely, unsigned opposition on the date of this hearing on January 20, 2026, claiming that he is self-represented, has been unsuccessful to obtain legal assistance, and has struggled to understand which issues to raise in this unlawful detainer case. See, Declaration of Derrick Lamont Beverly in Opposition to Order to Show Case re Sanctions ("Decl. of D. Beverly"), paras. 2-3.

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Counsel for Plaintiff claims that they have expended more than 10.75 hours on defending against these motions. The 10.75 hours only represents the time spent to request the terminating and OSC re Sanctions and the time for efforts made on and after October 17, 2025. Plaintiff has previously responded to five (5) motions noticed to Plaintiff. On and after October 17, 2025, there have been ten motions noticed, which include two filings after the court set this OSC re Sanctions. Plaintiff did not include time spent by attorneys and staff to review the court's docket to determine if the noticed ex parties were actually filed. (See, Aff./Decl. of Tracey Merrell, Esq., paras. 12-14.)

Plaintiff seeks Code of Civil Procedure section 128.7 sanctions in the amount of $4, 605.29 against Defendant Derrick L. Beverly based on the filing of the multiple frivolous motions in this case even after admonishment and warnings by the court.

Based on the foregoing, this Court awards Plaintiff sanctions for attorney's fees and costs related to Defendants previous motions on the following dates: September 29, 2025, October 9, 2025, October 13, 2025, October 15, 2025, Noticed for October 16, 2025, but not filed, October 17, 2025* Court Notes that future XPs deficient may result in OSC, October 21, 2025, November 4, 2025, November 13, 2025, December 1, 2025, December 3, 2025, December 11, 2025, December 12, 2025, December 19, 2025, and December 22, 2025.

The Court finds a reasonable sanctions award to be 10.75 hours at an hourly rate of $300.00, plus $35.54 in filing fees, for a total sanction of $2,185.54.

Sanctions are to be paid by Defendant within thirty (30) days of Plaintiff giving notice of the court's ruling.

Counsel for Plaintiff is ordered to give notice.